

Reylos Glass Impact System Manufacturing LLC
Terms and Conditions of Sale

Manufacturer and Customer agree to the following Terms and Conditions of Sale. The term "Product" is used to refer to products manufactured by Manufacturer. The term "Order" refers to a purchase order submitted by Customer to Manufacturer.

1. Customer's Order is binding only when accepted by Manufacturer by electronic acknowledgement, email or in writing, which is referred to in these terms and conditions as Manufacturer's "Acceptance." These terms and conditions are the only terms and conditions that apply to Customer's Order. Manufacturer's Acceptance of Customer's Order is conditioned upon Customer's agreement with these terms and conditions. Manufacturer reject any terms and conditions in Customer's Order, which are different from or additional to these terms and conditions or any changes to the Order after Manufacturer has issued the Acceptance, unless approved by one of Manufacturer's authorized managers in writing or by e-mail.
2. Manufacturer's price quotations are valid for 30 calendar days. Once Manufacturer has issued an Acceptance of Customer's Order and placed Customer's Order into production, Customer's Order may not be cancelled after 24 hours of placement of Customer's Order, and Manufacturer has the right to receive full payment from Customer for that Order (i.e., not merely a recovery of Manufacturer's cost incurred for the work-in-process prior to Customer cancelling the Order).
3. Customer is responsible for carefully reviewing and verifying the accuracy of Manufacturer's Acceptance of Customer's Order, including the quantities, sizes, and types of Products; Product specifications, such as glass types and types of finishes; pick-up or delivery location and estimated pick-up or delivery dates. Customer must notify the sales representative assigned to Customer's account or Manufacturer's customer service department within one business day after Customer's receipt of Manufacturer's Acceptance if Customer believe Manufacturer's Acceptance of Customer's Order contains any inaccurate information or terms.
4. Manufacturer reserves the right to make partial shipments of Customer's Order. Customer agrees to accept all partial shipments, except for any portion of such shipments that contains defective or incorrect Products. Manufacturer will issue separate invoices for each partial shipment, and Customer agree to pay those invoices on or prior to the due date.
5. For Orders that Manufacturer has agreed to ship to a specified delivery destination, and which are transported on a delivery vehicle driven by one of Manufacturer's employees, title and risk of loss for the Products covered by that Order transfers to Customer at the loading docks of that delivery destination.
6. For Orders picked-up at one of Manufacturer's facilities by Customer or any third-party carrier, regardless of who arranged for or hired that third-party carrier, title and risk of loss for the Products covered by that Order transfers to Customer when the Products are made available to Customer or that third party carrier at Manufacturer's facility. Customer is responsible for purchasing insurance to cover any loss, damage, destruction or theft of Products during transit, except where Manufacturer has agreed to deliver the Products to Customer using one of Manufacturer's vehicles and drivers employed by Manufacturer, as detailed above in Section 5.
7. To understand Manufacturer's estimated time of completion ("ETC") on filling any Order placed by Customer, check the Acceptance that Manufacturer has issued for that Order, or contact Manufacturer's sales representative that is assigned to Customer's account. Lead times vary depending on the types of Products ordered, the time of the year the Order for the Products is placed, any special requirements related to the Order or the Products, special shipping destinations, and many other factors, including without limitation, force majeure events, causes or circumstances beyond the reasonable control of Manufacturer such as supply chain issues, inability to secure key raw materials, and chain shortages or disruptions. Any estimated lead times or pick-up or delivery dates provided by Manufacturer for an Order will begin to run on the date that Manufacturer issues the Acceptance of that Order.
8. Manufacturer will use commercially reasonable efforts to deliver Customer's Products to the agreed-upon delivery destination by the estimated delivery date contained in Manufacturer's Acceptance of Customer's Order, but Manufacturer does not guarantee or promise that the Products will be delivered on that date and

Manufacturer will not be responsible for any charges, costs or damages of any kind incurred by Customer or others due to late deliveries, regardless of the reason for the late delivery. Similarly, Manufacturer will use commercially reasonable efforts to have Customer's Products available for pick-up at Manufacturer's facility by the estimated pickup date contained in Manufacturer's Acceptance, where the Order is to be picked-up by Customer or a third party carrier, but Manufacturer does not guarantee or promise that the Products will be available for pick-up on that date, and Manufacturer will not be responsible for any charges, costs, or damages incurred by Customer or others due to a delayed pick-up date, regardless of the reason for the delay.

9. Any claim by Customer that Customer have a right to return Product to Manufacturer, and/or receive a credit or refund for that Product, due to alleged Product defects, must be made by Customer to Manufacturer by email or in writing no later than seven (7) calendar days after the delivery of the Product to Customer (or seven (7) calendar days after the Product has been picked-up from Manufacturer's facility for Orders where Manufacturer are not responsible for delivering the Product), but in no event can any claim be made once the Product is installed. In other words, Customer has seven (7) calendar days to inspect and "reject" allegedly defective Products. Customer is not permitted to return any Product to Manufacturer unless and until Manufacturer issue Customer a written return authorization. Approved returns of Product to Manufacturer must be accompanied by a copy of that return authorization.
10. Any claim by Customer for Product shortages or that Manufacturer provided Customer with Products that Customer did not order, or provided Customer with the wrong quantity or types of Products must be made at the time of delivery or pick-up. Once Customer, Customer's third-party carrier or other representative signs the Product packing slip and/or bill of lading or any similar delivery confirmation documentation, Manufacturer is not required to correct or remediate any such alleged delivery shortage or inaccuracy.
11. Manufacturer has the right to change Manufacturer's prices and price lists at any time, without notice to Customer, except with respect to the Products covered by Order Acceptance issued by Manufacturer that contains confirmed Product prices, but only with respect to the quantity of Products covered by that Order Acceptance.
12. Taxes, duties, tariffs and other government charges or fees of all kind related to Customer's Order of Products from Manufacturer (other than Manufacturer's income taxes and property taxes), and Manufacturer's shipment of Products to Customer, are borne by Customer, unless Manufacturer's acceptance of Customer's Order expressly and unequivocally indicates that Manufacturer will be responsible for those costs.
13. Freight costs are borne by Customer unless Manufacturer's Acceptance of Customer's Order expressly states otherwise, such as where Manufacturer has accepted or quoted Customer a "delivery price." Freight charges may or may not be itemized on Manufacturer's Acceptance of Customer's Order.
14. Manufacturer's prices do not include costs for field testing; testing for regulatory approval of special-order products that require unique engineering; shop drawings; special engineering needs or requests; special boxing, crating or other types of special packaging that are not Manufacturer's standard packaging for the Product Customer have ordered; special protective coatings or covers requested by Customer; mock-ups or samples; or installation materials and supplies. In the event that Manufacturer agrees to perform or provide any of those services or goods for Customer, additional charges may apply, at Manufacturer's discretion.
15. Unless Manufacturer has previously approved a credit-terms arrangement with Customer in writing, Manufacturer's standard payment terms are as follows: one-half of the total amount Manufacturer quoted to Customer for the Order must be paid to Manufacturer within one business day after Manufacturer issues the Acceptance for that Order, and the remaining one-half must be paid on the date that Manufacturer deliver the Product(s) covered by the Order to the agreed upon delivery destination, or where the Order was accepted as one that Customer would pick-up, the date that Manufacturer makes the Order available for pick-up at Manufacturer's facility. However, Manufacturer reserves the right to vary Customer's payment terms, or even to require payment in full before Manufacturer deliver Products to Customer, or make the Products available for pick-up, in Manufacturer's discretion, depending on factors such as Customer's creditworthiness, the performance and financial condition of Customer's business, Customer's payment history with Manufacturer, and other factors that Manufacturer consider relevant. Except where prohibited by law, if Customer uses a credit card to make a payment due to Manufacturer, Manufacturer shall have the right to charge Customer a

surcharge to cover the transaction processing fees Manufacturer incurs as a result of Customer's use of the credit card for that transaction.

16. Customer grants to Manufacturer a security interest in the Products Manufacturer sells to Customer, as well as all accessions thereto, for the purpose of securing both payment and performance of all of Customer's obligations to Manufacturer. That security interest is a purchase money security interest, and it will be effective, and be in full force and effect, until the purchase price for the Products, plus accrued interest owed, if any, has been indefeasibly paid in full in cash and Customer have fully performed any other obligations owed to Manufacturer, at which time Manufacturer's security interest will be deemed satisfied. Customer will fully and reasonably cooperate with Manufacturer, and provide such further assurances necessary, to perfect Manufacturer's security interest. Customer irrevocably authorizes Manufacturer to file, in all public offices as Manufacturer deem necessary, and in Customer's name such financing statements as Manufacturer deem appropriate or necessary, describing the Products for which Customer have not fully paid Manufacturer the purchase price owed, in order to perfect the security interest described in this paragraph.
17. Manufacturer's Products are warranted in accordance with the Limited Warranty that is effective on the date of Customer's Order. Customer is responsible for providing or causing Customer's customer to provide to the end user/homeowner, where applicable, the original order information for the Order covering the Products at that residence or facility, such as the Order number and dealer contact information, if applicable, for Customer. A copy of Manufacturer's Limited Warranty, including all disclaimers and exceptions to the Limited Warranty, and effective dates regarding the Limited Warranty, shall be provided to Customer upon request. Customer agrees and acknowledges that the Limited Warranty which is effective on the date of Customer's Order forms the basis of the bargain for the purchase and sale of Products pursuant to Customer's Order. Manufacturer's warranties are void: (i) under the circumstances that Manufacturer specify in each warranty document; (ii) in the event any Product is used in a manner or for an application that Manufacturer does not recommend; (iii) if a Product is not properly used for code application; or (iv) if a Product is used with parts from a manufacturer that Manufacturer has not authorized. The Limited Warranty does **not** cover installation or installation-related defects.
18. **EXCEPT FOR THE LIMITED WARRANTY REFERENCED IN PARAGRAPH 17, MANUFACTURER MAKES NO OTHER WARRANTY WHATSOEVER WITH RESPECT TO ANY OF THE PRODUCTS, INCLUDING: ANY WARRANTY OF MERCHANTABILITY; WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; WARRANTY OF TITLE; WARRANTY AGAINST INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF A THIRD-PARTY; WHETHER EXPRESS, IMPLIED BY LAW, STATUTE, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE OR OTHERWISE.**
19. **CUSTOMER'S SOLE REMEDY FOR ANY BREACH OF WARRANTY FOR ITEMS MANUFACTURED BY MANUFACTURER IS, AT MANUFACTURER'S SOLE OPTION, THE REPAIR OR REPLACEMENT OF, OR CREDIT OF THE PURCHASE PRICE PAID BY CUSTOMER FOR, THE FAILED PRODUCT, EXCLUDING ALL LABOR COSTS.**
20. **THE LIMITED REMEDY DESCRIBED IN PARAGRAPH 19 WILL BE CUSTOMER'S SOLE AND EXCLUSIVE REMEDY AND MANUFACTURER'S ENTIRE LIABILITY FOR ANY BREACH OF THE LIMITED WARRANTIES REFERENCED IN PARAGRAPH 17.**
21. The exclusive remedy in Paragraph 19 shall not be deemed to have failed of its essential purpose so long as Manufacturer is willing and able to repair or replace nonconforming products, or credit the purchase price within 180 days of the date when Manufacturer determine that such Products are nonconforming. Any repair or replacement that Manufacturer provide shall not extend the period of the original warranty. Any suggestions by Manufacturer or Manufacturer's agents regarding use, application or suitability of the Products shall not be construed as an express warranty unless confirmed to be such in writing by Manufacturer.
22. **EXCEPT FOR CLAIMS FOR PERSONAL INJURY CAUSED BY THE PRODUCTS MANUFACTURER HAS SOLD TO CUSTOMER, MANUFACTURER WILL NOT BE LIABLE TO CUSTOMER OR ANY OTHER PERSON OR ENTITY FOR INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES ARISING OUT OF OR IN CONNECTION WITH MANUFACTURER'S SALE OF PRODUCTS TO CUSTOMER, OR ANY ACTS OR OMISSIONS ASSOCIATED THEREWITH, WHETHER**

SUCH CLAIM IS BASED ON BREACH OF WARRANTY, CONTRACT, TORT OR OTHER LEGAL THEORY AND REGARDLESS OF THE CAUSES OF SUCH LOSS OR DAMAGES OR WHETHER ANY OTHER REMEDY PROVIDED HEREIN FAILS.

- 23. IN NO EVENT SHALL MANUFACTURER'S TOTAL LIABILITY EXCEED AN AMOUNT EQUAL TO THE TOTAL AMOUNT PAID BY CUSTOMER FOR THE PRODUCTS CUSTOMER PURCHASED FROM MANUFACTURER THAT HAVE FAILED.**
24. Customer's Purchase Order, if and when accepted by Manufacturer, will constitute a contract made in, and to be governed in all respects by the laws of, the State of Florida, and the courts of the State of Florida within Miami-Dade County shall be the sole and exclusive venue and jurisdiction over any disputes arising under or related to these Terms and Conditions of Sale and Customer's Purchase Order. CUSTOMER KNOWINGLY, INTELLIGENTLY, AND VOLUNTARILY WAIVES ALL RIGHTS TO A TRIAL BY JURY IN CONNECTION WITH ANY CLAIMS ARISING OUT OF, OR OTHERWISE RELATING TO, THESE TERMS AND CONDITIONS.
25. Customer shall pay to Manufacturer all costs of collection, including, without limitation, reasonable attorneys' fees and costs, incurred by Manufacturer in collecting any money due from Customer and enforcing Manufacturer's rights under these Terms and Conditions and Florida law (including, without limitation, paralegal fees and the fees of expert witnesses and consultants, at all levels, including appeals). The unenforceability or invalidity of any one or more portions of these Terms and Conditions shall not render any other portion unenforceable or invalid, which remaining portions shall continue in full force and effect. No waiver by Manufacturer of any term or any obligation of Customer shall constitute a waiver of any other term or obligation. Customer shall not assign or transfer its rights or obligations under these Terms and Conditions without the prior written consent of Manufacturer. Which party prepared these Terms and Conditions shall have no bearing on its construction.
26. Manufacturer will not be responsible for any failure or delay in performance caused by acts of God and nature that are beyond Manufacturer's reasonable control, including but not limited to floods, tornadoes, hurricanes, power outages, unusually severe or abnormal weather, war or threat of war or insurrection, riots or other civil disturbances, acts of terrorism, strikes, lockouts and other labor difficulties, failure of usual sources of raw materials or other sources of supply, failure of computer systems, or destruction or loss of electronic data beyond Manufacturer's reasonable control.
27. Upon notification to the Customer that the Products are available for delivery or pick-up, the Customer shall arrange for delivery or collection of the Products within ten (10) calendar days from the date of such notification ("the Storage Period"). If the Customer fails to collect the Products within the Storage Period or if the Customer fails to arrange for delivery of the Products to occur within the Storage Period, Manufacturer is entitled to charge a storage fee of One Hundred Dollars (USD \$100.00) per day for each day beyond the Storage Period the products remain in the Manufacturer's possession. The Customer expressly acknowledges and agrees that the stipulated storage fee is a reasonable pre-estimate of the damages likely to be suffered by the Manufacturer due to the failure of the Customer to promptly retrieve or collect the Products. The Customer affirms that the storage fee is fair, reasonable, and is not intended as a penalty, but rather as a fair compensation for storage and handling costs incurred by the Manufacturer beyond the Storage Period. This storage fee shall be payable by the Customer upon demand by the Manufacturer and may be invoiced separately from the Products' purchase price. The Manufacturer reserves the right to refuse the release of the stored Products until all outstanding fees, including any accrued storage fees, are paid in full by the Customer.